

CASE SUMMARY

State v. Kumari Devi

Ct. Case No. 178/2020 | PS Mangol Puri | CNR DLNW010015012020

COURT	Court of the Additional Sessions Judge (Electricity), North-West District, Rohini Courts, Delhi
JUDGE	Sh. Prashant Kumar, Addl. Sessions Judge (Electricity)
DATE OF JUDGMENT	date of judgment (date of inspection / offence: date of inspection)
PARTIES	State (Tata Power Delhi Distribution Ltd.) v. Kumari Devi (registered consumer of the inspected premises)
STATUTES INVOKED	Section 135 (clauses (b)/(c) and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B & 106, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.
RESULT	Convicted under Section 135, Electricity Act, 2003. A meter-tampering (“meter-jumping”) case in which the tampered meter was retained as case property. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Kumari Devi dishonestly abstracted electricity by tampering with the meter (meter-jumping) so that it did not register the true consumption, attracting the meter-tampering limbs of Section 135(1) of the Electricity Act, 2003; and whether, tampering being shown, she rebutted the presumption in the third proviso.

FACTS

On inspection of the accused’s premises, an enforcement team of TPDDL found the meter tampered — a “meter-jumping” arrangement causing the meter not to record the true consumption. Unlike the direct-hooking cases, the abstraction here was achieved through the meter itself; the tampered meter was retained and sealed as case property. The usual inspection documents were prepared and the proceedings videographed with a Section 65B certificate.

On a complaint under Section 135, the accused pleaded not guilty. The inspecting officials and the Investigating Officer were examined and the retained meter and electronic record proved. Under Section 313 Cr.P.C. the accused denied the allegations and led no defence evidence.

REASONING OF THE COURT

HEADNOTE

Abstraction achieved by tampering with the meter itself — “meter-jumping” so that it under-records consumption — is theft under the meter-tampering limbs of Section 135(1); the tampered meter, retained as case property, is the material

proof, and the unrebutted third-proviso presumption convicts the registered consumer who leads no evidence of lawful, correctly-metered use.

The abstraction was by tampering with the meter. The theft was achieved through the meter itself — a meter-jumping arrangement causing it to under-record consumption — falling within the meter-tampering limbs of Section 135(1); the manner of abstraction differed from a direct hook but was equally a dishonest abstraction.

The retained meter was the material proof. The tampered meter was retained and sealed as case property; it, with the inspection report and the certified videography, established the tampering and the manner of theft, and fixed the registered consumer as answerable.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* non-examination of an independent witness is no infirmity.

The presumption was compulsory and, unrebutted, convicted. Following *Neeraj Dutt* (compulsory “shall presume”) and *Hiten P. Dalal* (prudent-man standard), the Court held that the accused, leading no defence evidence and producing no proof of lawful metered use (*Mukesh Rastogi*; Section 106 onus), failed to rebut the presumption.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(b)/(c) — Theft by Tampering with the Meter

Where the abstraction is achieved not by an external hook but by tampering with the meter itself — here a “meter-jumping” arrangement causing the meter not to register the true consumption — the offence falls under the meter-tampering limbs of Section 135(1) (interfering with, or preventing the correct registration by, a meter). It is as much a dishonest abstraction as a direct tap; the retained meter is the material evidence of the manner of theft.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Proof that the meter was tampered raises the reverse-onus presumption of dishonest use. The accused must adduce evidence making an innocent explanation reasonably probable — a bare denial, without proof of lawful, correctly-metered consumption, does not displace it.

HELD

The prosecution proved beyond reasonable doubt that the meter at the accused’s premises was tampered so as to abstract electricity, an offence punishable under Section 135 of the Electricity Act, 2003, and that the accused led no evidence to rebut the statutory presumption. **Kumari Devi is accordingly convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

SIGNIFICANCE

A meter-tampering conviction — theft through the meter rather than around it. Four propositions stand out:

- **Meter-jumping is theft under Section 135.** Causing the meter to under-record consumption is a dishonest abstraction within the meter-tampering limbs of Section 135(1).
- **The retained meter is the material proof.** Unlike a hooked wire, the tampered meter itself, retained as case property, evidences the manner of theft.
- **The presumption applies to tampering.** Proof of tampering raises the reverse-onus presumption just as a direct tap does.
- **A public witness is not essential.** Official inspection testimony suffices absent shown enmity (*Ashwani Kumar; Sushil Sharma*).

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	"Shall presume" denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.